NOESIS GROUP: AGREEMENTS, INSURANCE AND BANKING

Revised schedule (version 2), 12 November 2026, with the banking section built in

Prepared for: John Webb O'Rourke. **Revised in Cuan on 12 November 2026** to build in Meridian's banking opinion (Bank of Ireland Dublin corporate banking) and a new section 7 on the banking documents, resolutions and minutes. Sections 1 to 6 and 8 to 9 are Meridian's focused schedule with the order of work updated. **Status:** IN REVIEW. Legal and Governance, and Finance and Restructuring gates engaged. **Not legal, tax, employment or insurance advice.** Meridian informs. It never represents. No commitment without Shane McCarthy's alignment.

Scope, as John directed on 12 November. This replaces the people section of Meridian's earlier overview (`Noesis_Group_People_Governance_Compliance_Overview_2026-11-12`) and narrows it. It does not deal with shareholdings, subscribers or company formation, which are in hand. It takes the group structure as explained and sets out what agreements should exist for each individual and adviser, what insurance should protect individuals and the companies, and what Irish and international law bears on them.

Evidence tags: CONFIRMED (search) means several professional sources agreed in search results on 12 November. Meridian could not open the Irish Statute Book, so no statute text was read. **REPORTED** means said by John or Shane. **UNVERIFIED** means Meridian's own knowledge, a question for a solicitor.

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1. The structure as explained, and what I am treating as given

- **Noesis** is the group holding company. The officers (Shane, John, Pat Carroll, Tom Stapleton, Diarmuid Hudner) will be Noesis group employees. There will be group lawyers (possibly including former lawyers) and group corporate accountants advising the group.
- **Asterial** takes the investment for ODIN. It will have a full-time office headed by Shane as CEO, with Diarmuid as investment head and director, employed AI architects and builders, and probably Tom as operations officer. It will have its own corporate solicitors and accountants.
- **Other companies** (Velocity, SanCelvio, Zubelsala and the ten new ones) are mostly undefined, with Shane as CEO of each. John will be a shareholder, director and officer of Velocity.
- **The investment** comes from a Saudi family, represented by a **London law firm**. The investing entity may be a **UK-incorporated vehicle**, not yet named. The family is **employing a new investment manager**, not yet named. A **term sheet** is expected in a week or two.
- **Trading** is Irish-based and international.

Given and not revisited: shareholdings, who subscribes to which company, and formation of the ten new companies.

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2. What a London lawyer, a UK vehicle and a new investment manager change

Point	Why it matters for the agreements	Tag
The London firm acts for the investor, not for Asterial.	Asterial and its officers need their own solicitors for the raise. Do not rely on the investor's drafts.	Principle
A UK vehicle is still a "third-country" investor.	Under the Irish screening regime, notification turns on whether the direct investor or its ultimate owner is outside the EU, EEA and Switzerland. The UK is outside, and the Saudi owners behind it are looked through. Asterial should ask for the full ownership chain.	CONFIRMED (search) on the test; whether a spec

Point	Why it matters for the agreements	Tag
		ific deal is noti fiabl e is for Irish cou nsel
The vehicle is unnamed.	The term sheet should name the investing entity, the entity that gives the funding commitment, and any guarantor or parent, and require consent before the vehicle is changed or the commitment assigned. Ask for proof of funds and a funding timetable.	Prac tice, UNV ERIF IED
A new investment manager will be the day-to-day counterparty.	Information rights, board observer rights and reporting will flow to the manager and the family. That needs a confidentiality agreement covering the manager personally and a data protection clause for any personal data given to them. If the manager is a regulated firm it will bring its own compliance requirements (UNVERIFIED). Ask who is authorised to speak and sign for the investor.	Prac tice, UNV ERIF IED
Verification before signing.	Entity details, owners and controllers, source of funds, sanctions and political-exposure screening, and the identity of the instructing lawyers. Asterial's own lawyers should ask for confirmation in writing.	Prac tice
Governing law and disputes.	Irish or English law with arbitration in a neutral seat is the usual compromise. Saudi Arabia is a New York Convention state and has accepted Convention membership as satisfying reciprocity, but a Saudi lawyer should confirm enforcement and any state-immunity point.	CON FIR MED (sea rch) on the Con ven tion posi tion
Investor-appointed director or observer.	Needs a letter of appointment or observer terms, a confidentiality undertaking, a conflicts clause, and cover under the company's insurance (section 5).	Prac tice
Side letters.	Keep a register. Every side letter should be disclosed to the board and to the other investors.	Prac tice

3. Agreements by individual

Each of these is a document or set of documents, to be signed by the employing or appointing company and the individual. "Core terms" lists what each should cover. Use the same language in every document so the group is consistent.

3.1 Shane McCarthy (CEO of Noesis and Asterial, CEO of each other company)

Document	Core terms
Executive service agreement with the employing company (and a short side agreement or services letter for every other company he leads)	Role and authority, working time and exclusivity, which company pays him for what, remuneration and benefits, notice, termination, garden leave, return of property, confidentiality, and what he may and may not do in his own time. Written terms must reach any employee within five days and the rest within one month (CONFIRMED (search)).
Director appointment letter for each board	Duties, time, board and committee roles, conflicts, indemnity, insurance, information rights.
IP assignment and confidentiality deed	Assigns present and future IP created in the course of work, confirms what is assigned from the past, and sets a schedule of personal projects kept outside. Assignments must be in writing and signed (CONFIRMED (search), Copyright and Related Rights Act 2000 s.120).
Conflicts and interests declaration	Every other venture, role and interest, updated at each board.
Related-party approval record	Any contract between Shane and a group company (for example the ODIN assignment or licence) needs disclosure and independent approval (ss.231 and 238 of the Companies Act 2014, CONFIRMED

Document	Core terms
	(search)).
Indemnity deed	See section 5. Limits apply under s.235.
Founder and key-person terms (if the investor requires them)	Time commitment, leaver provisions, continuity arrangements. To be settled with the term sheet.

3.2 John Webb O'Rourke (interim Chairman and secretary of Noesis, officer and director of Velocity)

Document	Core terms
Chairman's letter of appointment	Non-executive terms, role, time commitment, remuneration if any, conflicts, confidentiality, indemnity, insurance, term and review. State plainly if the post is unpaid.
Secretary's appointment and mandate	Duties, authority, who checks registers and filings, and a rule that the secretary does not sign as a director or advise the board against its own interest.
Executive, employment or consulting agreement (only if John is to be paid for work)	Decide first whether he is an employee, an office-holder or a consultant. Employment raises exclusivity and time questions against his other roles. His own solicitor should advise, not paid by a group company.
Velocity director and officer documents	Director letter, officer authority, conflicts against Meridian and Ambrion, and written terms for any Velocity contract in which he has an interest.
Conflicts and interests declaration	Meridian, Ambrion, Velocity, any adviser relationships, AHL and UHL roles. UHL and AHL confidential information stays out of the group.
Meridian engagement terms (if Meridian advises any group company)	Written scope, fee, boundary ("informs, never represents") and conflict note.

3.3 Pat Carroll (CFO of Noesis)

Document	Core terms
Executive or part-time service agreement	Role, authority limits (signing, payments, reporting), hours, remuneration, confidentiality, IP, termination.
Separate engagement letter for his practice	Scope of company secretarial, filing, bookkeeping and accounting work, fees, access, data protection, independence, no audit by the practice, and a statement that it is not part of his CFO duties.
Independence and conflicts protocol	Who reviews the CFO's output, who signs off the accounts, and how the two roles are kept apart. Investors and auditors will ask.
Director appointment letter (if he remains a director of any company)	As for 3.1.

3.4 Tom Stapleton (Chief Operations and Security Officer; operations officer at Asterial)

Document	Core terms
Employment contract with one employer	Role, reporting line, remuneration, written terms within five days, IP and confidentiality, notice.
Dual-role or secondment letter	Which company pays him, which company directs each part of his work, how his time is recharged, who owns what he creates, and who is liable.
Security mandate	Written authority and reporting line for information security, incident response and access control, with a power to stop unsafe practice.
Conflicts and interests declaration	As above.

3.5 Diarmuid Hudner (Head of Investments, director of Asterial)

Document	Core terms
Service agreement or director letter	Role, authority, limits, remuneration, confidentiality, IP, termination.
Investor-negotiation authority letter	He may negotiate within defined limits. He may not agree price, exclusivity or binding commitments without board approval, and all investor communications are recorded.
Interest and incentive terms	Any fee, bonus or equity-linked reward in writing and approved by the board, with his interest disclosed (s.231). Any introducer or origination fee payable to anyone is dealt with in a separate agreement (3.9).
Conflicts and interests declaration	As above.

3.6 Employees (AI architects, builders, operations, administration)

Document	Core terms
Employment contract and	Core terms within five days, other terms within one month, signed and dated by the employer

Document	Core terms
written statement	(CONFIRMED (search)). Probation, hours, pay, leave, notice, place of work and remote working, pension (auto-enrolment, CONFIRMED (search)), and disciplinary and grievance procedures.
IP assignment, moral rights consent and invention disclosure	Employer owns work made in the course of employment unless otherwise agreed (CONFIRMED (search), Copyright and Related Rights Act 2000 s.23). Add a written assignment for anything created before the contract or outside the strict role.
Confidentiality and trade secret terms	Define what is secret, what steps staff must take, and return or deletion on exit.
AI and data acceptable-use policy	Approved tools and accounts, what data may be entered, ownership of outputs, no personal accounts for company work.
Reasonable restrictive covenants	Non-solicit and a narrow non-compete tied to a real interest, with a stated period and area. Irish courts apply a reasonableness test and do not rewrite an over-wide covenant (CONFIRMED (search)).
Employee handbook and policies	Anti-bribery and gifts, conflicts, data protection, information security, whistleblowing (a formal channel is required from 50 employees, CONFIRMED (search)), health and safety statement (CONFIRMED (search)), dignity at work, remote working.
Option letter (if granted)	Tax treatment cannot be promised. The KEEP relief and its 2026 grant window are uncertain (CONFIRMED (search) on the extension to 2028; window unconfirmed).
Employment permit (non-EEA hires)	Critical Skills thresholds from 1 March 2026 are €40,904 (degree) and €68,911 (experience route) (CONFIRMED (search)).

3.7 Contractors and freelance builders

Document	Core terms
Services agreement	Scope, fees, no-employment statement (tested against the facts), confidentiality, personal data terms, subcontractor rules, open-source and third-party code rules, security requirements.
IP assignment	A contractor generally owns what they create unless it is assigned in writing (UNVERIFIED as a general rule). Every contractor needs a signed assignment, and anyone who built ODIN components before any contract existed needs a confirmatory assignment now.

3.8 Advisers to the group and to Asterial

Adviser	Document and core terms
Group solicitors	Engagement letter naming the client company, scope, fees, conflicts position when Asterial and Noesis diverge, and privilege handling. Use practising solicitors for anything that must be privileged. Advice from non-practising "former lawyers" may not be privileged (UNVERIFIED).
Asterial's solicitors	Separate engagement for the raise, instructed by Asterial's board, not by an individual.
Shane's and John's personal solicitors	Engaged personally and paid personally.
Group and Asterial accountants	Engagement letters with scope, deliverables, independence and data terms. Keep them separate from the statutory auditor when appointed.
IP, employment and tax advisers; data protection adviser; Saudi and FDI counsel	Engagement letters with a narrow written brief and fee estimate each.

3.9 Intermediary and introducer

Document	Core terms
Introducer or origination agreement	Who is paid, on what event, how much, when, and the fact that the introducer has no authority to bind anyone. Include anti-bribery undertakings (s.18 of the Criminal Justice (Corruption Offences) Act 2018 makes a company liable for offences by agents and officers unless it took reasonable steps, CONFIRMED (search)), and confirm the introducer's regulatory status.

3.10 Investor-side counterparties

Document	Core terms
NDA and no-commitment letter	Mutual confidentiality, no obligation until signed, no exclusivity unless agreed, and who may speak for the investor.
Investor director letter or observer terms	Duties, confidentiality, conflicts, information-sharing limits, insurance.
Investment manager confidentiality and data terms	The manager personally bound, data protection clause, security expectations.
Side letters	Registered and disclosed.

3.11 Group-wide documents that sit above the individual agreements

Keep these short and consistent: **intragroup services agreement**, **IP licence framework**, **board charter with delegation of authority and signing matrix**, **conflicts and related-party policy**, **anti-bribery and sanctions policy**, **information security and AI-use policy**, **data protection policy**, **whistleblowing procedure**, and a **compliance calendar**. These make the individual agreements work and are the evidence of reasonable steps if something goes wrong.

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4. Irish and international law that bears on these agreements

4.1 Ireland (employer and officer duties)

Topic	Effect on the agreements	Tag
Terms of Employment (Information) Act 1994, as amended	Written statement of core terms in 5 days and the rest in one month.	CONFIRMED (search)
Employer registration and real-time payroll reporting	Before first pay.	CONFIRMED (search)
Auto-enrolment from 1 January 2026	Registration, payroll instruction and contributions for eligible staff not in a qualifying pension.	CONFIRMED (search)
Safety, Health and Welfare at Work Act 2005, s.20	A written safety statement, brought to all staff.	CONFIRMED (search)
Protected Disclosures Act 2014 as amended	Internal channel from 50 employees.	CONFIRMED (search)
Employment Permits Act 2024	Permits for non-EEA hires.	CONFIRMED (search)
Other employment statutes (equality, unfair dismissal, notice, wages, working time, leave)	Contracts and policies must match them. Exemptions for senior executives need an employment solicitor.	UNVERIFIED
Companies Act 2014, ss.228, 231, 238, 239	Directors' duties, interest disclosure, approval of asset transactions with directors, and the bar on loans and credit to directors (so no company advances to officers, and the company must not pay an individual's personal legal costs).	s.228 UNVERIFIED; ss.231, 238, 239 CONFIRMED (search)
Companies Act 2014, s.235	Indemnity limits (section 5).	CONFIRMED (search)

Topic	Effect on the agreements	Tag
		in part
Copyright and Related Rights Act 2000, ss.23, 120	Employer first owner of employee works; assignments in writing.	CONFIRMED (search)
Restrictive covenants	Reasonableness test, no rewriting by the court.	CONFIRMED (search)
Criminal Justice (Corruption Offences) Act 2018, s.18	Corporate liability with a "reasonable steps" defence.	CONFIRMED (search)
Data protection, AI Act, trade secrets	Notices, processor terms, AI-use rules, secrecy steps.	UNVERIFIED

4.2 International

- **Staff or contractors abroad:** local employment law, tax and social insurance can apply, and the company can acquire a taxable presence. Use local advice or an employer of record before hiring anyone outside Ireland. UNVERIFIED.
- **Seconded or visiting staff from the investor:** immigration permission, confidentiality and conflicts terms. UNVERIFIED.
- **UK and Saudi reach:** the UK Bribery Act and the US Foreign Corrupt Practices Act can apply to non-UK and non-US companies in some cases. Saudi personal data law may affect data sent to the family and manager. UNVERIFIED.
- **Customers abroad:** governing law, liability limits, data terms, sanctions and export-control clauses in every contract. UNVERIFIED.
- **Sanctions:** screen the investor, its owners, the manager and any introducer before signing. UNVERIFIED on the instruments.
- **Foreign investment screening:** a UK vehicle owned by a Saudi family is a third-country investor on the test described in section 2. Irish counsel should confirm whether the deal is notifiable. AI as a covered sector is not confirmed. CONFIRMED (search) on the structure of the regime only.

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5. Insurance: directors, officers, executives and the companies

5.1 Why insurance carries more weight in Ireland

- Section 235 of the Companies Act 2014 makes void any provision that exempts an officer from liability or indemnifies an officer against it, with exceptions. A company can generally indemnify costs of successfully defending proceedings, and the Act permits the company to buy and maintain insurance for directors and officers. **CONFIRMED (search)** in part. The exact exceptions in s.235(2) to (6) were not retrieved, so a solicitor must confirm them.
- **Result:** an indemnity deed from the company cannot be the whole protection. A properly structured D&O policy is the main protection for the individual.
- A Marsh briefing says Irish rules restrict non-admitted insurers, so Irish companies commonly place D&O in Ireland or the EU. **CONFIRMED (search)**, single source.

5.2 Directors and officers (D&O) liability insurance

D&O policies have three insuring agreements: **Side A** (the individual, when the company cannot or will not indemnify), **Side B** (the company, reimbursed when it indemnifies the individual) and **Side C** (the company itself, usually for claims brought alongside its directors). **CONFIRMED (search).**

Design point	Recommendation
Structure	One group policy with Noesis as the named policyholder and every group company as an insured entity, with **automatic cover for new companies** (check the wording and any time limit). Ask whether the limit is shared across the group. If so, consider a **separate Side A "difference in conditions" layer** for the individuals so they are not left with an exhausted limit.
Who is insured	Every director and shadow director, the **company secretary**, the interim and any future non-executive Chairman, executives who are not directors (CFO, Chief Operations and Security Officer, Head of Investments), and senior employees. Include past and future officers.
Outside roles	John's Velocity role, and Noesis nominees on any other board, need **outside directorship cover**. Confirm that John's separate AHL and UHL policies are not relied on for group roles and vice versa.
Investor-appointed director or observer	Investors usually bring their own cover and ask to be named under the company's policy as well. Agree the order of the two policies and the indemnity terms in the investment documents.
Insured versus insured	This exclusion bars claims between insureds and is the main trap for venture-backed companies, because investor directors and officers can fall out. Ask for carve-backs for derivative claims, whistleblower claims and claims by a liquidator or insolvency practitioner. **CONFIRMED (search)** on the exclusion and carve-backs.
Entity cover	Many private-company policies cover the company only when it is sued with an individual. Ask what entity cover is offered and whether it includes regulatory investigations, employment claims and securities-type claims from investors.
Prior acts and retroactive date	Full prior acts cover back to formation of each company, so earlier conduct (including the period before the raise) is covered.
Defence costs	Advancement of defence costs before a final outcome, with a clear order of payments that protects the individuals first.
Severability and non-rescindable Side A	One person's misstatement in the application must not remove cover from the others, and Side A should not be voidable.
Run-off and change of control	A tail of several years on a sale, a listing or a wind-down. Ask the broker for the options. (Not covered by my search, UNVERIFIED.)
Application and disclosure	Disclose accurately, including the Saudi raise, the group structure, the ODIN ownership position and any known circumstances. Material non-disclosure can allow the insurer to avoid cover. **UNVERIFIED on the Irish rules.**
Investor requirement	Investors often make D&O a condition of the investment (**CONFIRMED (search)**), so plan to bind cover before completion.

5.3 Other covers to put in place

Cover	Protects	Note
Employment practices liability	Company and individuals against claims by staff (discrimination, unfair dismissal, harassment).	Often an extension to D&O. Check that it covers the Workplace Relations Commission process.
Professional indemnity or technology errors and omissions	Claims that AI outputs, software or advice caused loss.	AI exclusions are common. Read them closely.
Cyber	Breach response, ransom, business interruption, regulatory defence and notification costs.	Link the policy requirements to the information security policy.
Crime or fidelity, including social-engineering fraud	Employee dishonesty and payment fraud by impersonation.	Important for a company that moves investment funds.
Key-person	The company if Shane or another critical person dies or is incapacitated.	Investors often require it.
Public liability and property	Third-party injury and damage, the office and equipment.	Once the office opens.
Employers' liability	Employee injury claims.	Sources disagree on whether it is compulsory in Ireland. Ask the broker. UNCONFIRMED.
Business travel and personal accident	Individuals abroad.	For international travel.
IP infringement defence	Costs of defending infringement claims.	Availability varies. UNVERIFIED.

5.4 Insurance and the individual agreements

- Each director letter and executive agreement should say that the company will **maintain D&O cover** at an agreed level, supply a copy of the policy, give notice of changes, and keep **run-off cover** for a stated period after the person leaves.
- The **indemnity deed** should be drafted within s.235 and should sit behind the insurance, not in place of it.
- Cover should be **bound before** the Asterial completion and ideally before the group begins to trade or hire.

6. Order of work against the term sheet

When	Do
Now	Appoint a specialist broker and brief them on the structure. Instruct an employment solicitor for templates. Name Asterial's own solicitors for the raise. Ask the London firm for the investing entity, ownership chain, proof of funds and the investment manager's details.
Before the term sheet	Executive and director letters for Shane, John, Pat Carroll, Tom and Diarmuid in draft. IP assignments from every contributor. Conflicts declarations. Investor NDA and no-commitment letter. Introducer agreement. Irish FDI advice. D&O quotes.
At the term sheet	Name the investing entity and guarantor, agree the funding commitment, put in director, observer and insurance terms, and agree the cost cap and broken-deal terms.
Before completion	Sign executive and employment documents. Bind D&O, cyber, crime, EPL, professional indemnity and key-person cover. Finish policies and registers.
Banking, throughout	See section 7: bank approach and KYC pack now, treasury policy and resolutions R1 to R7 drafted before the term sheet, R8 to R10 at the term sheet, execution and test payment before completion.
After completion	Compliance calendar running, annual insurance review, and a review trigger for each new company, hire or round.

7. Banking for the group: what to prepare, draft, agree and execute

Purpose. To have every banking document, resolution and minute drafted and ready, company by company, so that accounts open promptly and the Asterial investment can be received, held and moved under clear authority as soon as the term sheet arrives. This section builds Meridian's banking opinion of 12 November (Bank of Ireland Dublin corporate banking, with a second bank in parallel, which John agreed) into the contract and due diligence schedule. Tags are as defined at the top. **CONFIRMED (search)** means several sources agreed in search on 12 November. **UNVERIFIED** means a point for the named professional or the bank to confirm.

7.1 The position in brief

1. **Each company has its own accounts, resolutions and minutes.** Asterial holds the investment. Money moves between companies under signed intragroup agreements.
2. **Ownership comes first.** Bank of Ireland's switching guide asks that company details match the CRO and the Register of Beneficial Owners (RBO) before applying (CONFIRMED (search)). The order is: incorporate, file the RBO, then apply.
3. **Authority is created by board resolution and given effect by the bank's mandate.** Bank of Ireland's mandate wording has the board resolve that the bank acts on the authorised individuals named, and the mandate stays in force until an amending resolution, properly certified, reaches the bank (CONFIRMED (search), wording of the bank's own form).
4. **Dublin corporate banking is the primary route and a second bank is the standby.** The bank's internal routing is UNVERIFIED. One question to the bank settles it: which team owns the relationship and where the credit and compliance decisions sit.
5. **Everything is drafted before the term sheet, finalised at the term sheet and signed before completion.**

7.2 Sequence

When	Banking actions
Now to the term sheet	Confirm which companies hold funds first: **Noesis, Asterial and Fabrica AI** (Meridian's list). Confirm incorporation of the ten new companies after the Friday 13 November signing (REPORTED). File or confirm the RBO for each. Assemble the KYC pack (7.3, B2). Approach Bank of Ireland corporate new business in Dublin and open a conversation with a second bank. Ask the one question. Draft the treasury policy, signing and delegation matrix, payment controls and resolutions R1 to R7. Instruct Irish FDI counsel. Ask the London firm for the investing entity, ownership chain, proof of funds and the investment manager's details.
At the term sheet	Agree with the investor's side: how the money arrives (direct to the Asterial account or through a solicitor's client account), currency, tranches, any use-of-proceeds or ring-fence condition, and any approved-bank condition. Update the treasury policy. Hold the board meeting for R8 to R10.
Before signing and completion	Execute the application, mandate and resolutions. Accounts live with online banking and tokens tested by a small test payment. Crime and cyber cover bound (section 5). Receipt protocol and funds-flow memorandum agreed. Allotment resolution ready to pass on receipt.

When	Banking actions
Completion and after	Confirm receipt, minute it, allot, place funds under the treasury policy. Monthly treasury report to the board and the audit and risk committee. Register and calendar kept current (B15).

7.3 The document set

Drafted by means the person or firm who prepares the first draft. Every legal document goes to the named solicitor before signature.

#	Document	For	Drafted by	Signed or approved by	Tag
B1	**Bank company account application and supporting forms**	Each company opening an account, Asterial first	Finance lead with Pat Carroll's office	Directors, as the bank's form requires	Bank's public pages list the requirements (CONFIRMED (search)); the form itself was not opened. UNVERIFIED
B2	**KYC evidence pack:** certificate of incorporation, constitution, list of directors and secretary, certified list of directors and owners above 25%, identity and address evidence for two directors and for owners if asked, proof of RBO filing, business description, expected account activity including the investment, source of funds (the term sheet and investor details)	Each company	Secretary with Pat Carroll's office	Certifiers named by the bank	Items to 25% and identity: CONFIRMED (search). Founders' source of wealth: UNVERIFIED, standard practice
B3	**Board resolution opening the accounts and appointing authorised individuals**	Each company	Secretary, reviewed by solicitor	Board, certified by the secretary	Bank wording CONFIRMED (search)
B4	**Account mandate, online banking and token forms, schedule of authorised individuals and limits**	Each company	Finance lead	Board, secretary and an authorised signatory	CONFIRMED (search) on the form wording
B5	**International payments and currency set-up** (the bank's FXPay application for company accounts and any Global Markets documents)	Asterial and any company paying abroad	Finance lead with the bank	Board resolution and authorised individuals	FXPay company application exists (CONFIRMED (search)); Global Markets terms UNVERIFIED
B6	**Treasury policy**	Group policy, adopted by each company holding funds, Asterial first	Pat Carroll with an independent reviewer	Board of each company	Principle. Limit per bank, instruments, currencies, liquidity for 12 to 24 months, reporting
B7	**Signing and delegation matrix** with value tiers	Group	Secretary and Pat Carroll	Board	Principle
B8	**Payment controls procedure:** prepare, approve, release roles; approved payee list; call-back to a number on file for any change of details; daily limits; token custody	Group	Tom Stapleton (security) and Pat Carroll	Board	Principle. Verification of Payee applies (7.5)
B9	**Intragroup agreements:** subscription, services (including Pat Carroll's work for Asterial), IP licence framework, any intragroup loan	Between companies	Group solicitor	Each board, with directors' interests recorded	Loans: s.239 and the group position to confirm with the solicitor (UNVERIFIED)
B10	**Related-party approvals:** payment terms for Shane's IP consideration and any payment to a director or connected person	Companies concerned	Solicitor and secretary	Board with the interest declared and minuted; members' approval where the law requires	ss.238 and 239 (CONFIRMED (search) that they exist and what they cover); thresholds and s.231 disclosure rule UNVERIFIED
B11	**Investment receipt**	Asterial	Asterial's own solicitors	Board and investor	Principle

#	Document	For	Drafted by	Signed or approved by	Tag
	documents: subscription agreement (with the investor's lawyers), funds-flow memorandum, completion statement, receipt protocol, allotment resolutions			side	
B12	**Investor due diligence response pack:** ownership chain, authorised signatories, sanctions and political-exposure confirmations, proof of funds	Asterial	Secretary and solicitor	Investor side confirms in writing	Practice, UNVERIFIED
B13	**Foreign investment screening assessment memo**	Asterial and any group company the investor will hold	Irish FDI counsel	Board notes the advice	7.5
B14	**Second-bank standby application**	Noesis and Asterial	As B1	As B1	Principle
B15	**Banking and compliance register and calendar:** RBO changes within 14 days, mandate changes, annual treasury review, signatory changes, insurance renewals	Group	Secretary	Reviewed quarterly by the board	RBO timing CONFIRMED (search)
B16	**Insurance evidence for the bank and the investor:** crime and cyber certificates	Asterial and group	Broker (Marsh Dublin, section 5)	Board notes cover	Principle

7.4 Resolutions and minutes

Who and where. Each company's board passes its own resolutions. The company secretary records them. **Asterial needs its own secretary** (section 8, employer mapping), and **John's consent to act as secretary** for each of the ten new companies is part of the formation pack (REPORTED). The Noesis constitution as filed contains no quorum, chair or board-rules clause (CONFIRMED, John's photographs of 12 November), so board rules are adopted first.

#	Resolution	Company	Content	When
R1	**Board rules and officers**	Each	Quorum, chairing, notice, written resolutions, conflicts procedure, minute book, the secretary's duties, a resolutions register	First board meeting
R2	**Open accounts and appoint authorised individuals**	Each opening an account	Approve the application, adopt the bank's mandate (bank wording), name the authorised individuals, authorise the secretary to certify	Before B1 is lodged
R3	**Signing and delegation matrix**	Each	Value tiers, who prepares, approves and releases, when a board resolution is required for a large or unusual payment	With R2
R4	**Treasury policy**	Each holding funds	Purpose of funds, limit per bank, permitted instruments and tenor, currencies, liquidity, reporting, review date	Before funds arrive
R5	**Payment controls and token administrator**	Each	Adopt B8, name the administrator and a deputy, adopt call-back and payee-list rules	With R3
R6	**Finance controller, independent reviewer and audit and risk committee**	Asterial; Noesis to follow	Appoint, set terms of reference, monthly review of balances, exposures and compliance with policy	Before funds arrive
R7	**Intragroup agreements**	Each party	Approve B9, record directors' interests and who voted	Before any inter-company money moves
R8	**Related-party transactions**	Companies concerned	Approve terms for Shane's IP consideration and other connected payments after disclosure; members' resolution where the law requires	Before payment
R9	**Subscription, allotment and funds flow**	Asterial	Approve the subscription documents, authorise the allotment, confirm directors' authority and pre-emption position (Noesis's filed constitution contains the s.69(1) authority and s.69(6) disapplication; Asterial's to check), approve the funds-flow memorandum	At the term sheet and before completion
R10	**Second bank and standby**	Noesis, Asterial	Approve B14	At the term

#	Resolution	Company	Content	When
				sheet
R11	**Receipt of funds**	Asterial	Note receipt, authorise placement under R4, allot shares	On completion
R12	**Standing monthly treasury item**	Each holding funds	Balances, limits, exceptions, payments of note, signatory changes	Monthly

Minute-keeping, made simple. - Directors' minutes go in a minute book kept for the purpose (Companies Act 2014 s.166, "Minutes of proceedings of directors", CONFIRMED (search)). General meeting minutes are under s.199. - Each minute records: date and means of meeting, those present, quorum, declarations of interest, papers tabled, the decision, the vote and who acts. One template for all companies keeps it quick. - **Written resolutions:** secondary sources read s.161 as requiring signature by every director entitled to notice of board meetings. The statute text was not opened. The solicitor confirms before the group relies on it (UNVERIFIED). - **Interested directors:** declare the interest, minute it and minute who voted. Shane's IP terms and Pat Carroll's firm's engagement are the two live examples. The solicitor confirms the exact rule (s.231 not opened, UNVERIFIED). - **Certified copies for the bank:** the secretary certifies resolutions. Bank of Ireland's change-of-authorised-individuals form is signed by the company secretary and any one authorised signatory (CONFIRMED (search)). - **Circulate resolutions with the papers.** A short draft resolution for each item, agreed in advance, makes the meeting a ten-minute decision and keeps the record clean. - **Resolutions register:** R-number, company, date, who proposed and seconded, who certified, where filed. The secretary keeps it with the minute book.

7.5 Law and rules that frame the banking

Requirement	What it means in practice	Tag
Directors' minutes (Companies Act 2014 s.166)	Minute book per company; resolutions filed with it	CONFIRMED (search)
Authority to bind (ss.40 and 41)	The board and registered persons have deemed authority that third parties may rely on; the bank still asks for a resolution and mandate, so the group gives it	CONFIRMED (search, Arthur Cox note)
Loans, quasi-loans, guarantees and security for directors and connected persons (s.239; exceptions including the summary approval procedure at s.242)	Move money between companies by subscription or documented services charge. Any loan goes to the solicitor first	CONFIRMED (search) on the rule and the exceptions; group-company position UNVERIFIED
Substantial property transactions (s.238)	A company's purchase of a non-cash asset from a director can need members' approval. Relevant to the IP transfer from Shane. Solicitor confirms thresholds	CONFIRMED (search, Law Society practice note, existence); thresholds UNVERIFIED
Beneficial ownership (European Union (Anti-Money Laundering: Beneficial Ownership of Corporate Entities) Regulations 2019)	New companies file on the RBO within five months of incorporation and update within 14 days of a change; each company also keeps its own internal register. Banks ask for the filing	CONFIRMED (search, law-firm and accountancy sources from 2019)
Customer due diligence (Criminal Justice (Money Laundering and Terrorist Financing) Act 2010 as amended)	The bank carries out ownership, identity and risk checks, with enhanced checks for politically exposed persons (s.37), high-risk third countries (s.38A) and other higher-risk cases (s.39). The group helps by giving a clear ownership chart and source of funds early. Whether any named country is on the current high-risk list was not checked	CONFIRMED (search) on the sections
Deposit guarantee	EUR 100,000 per depositor per bank. Hence the limit-per-bank policy and the standby bank	CONFIRMED (search, Meridian 12 Nov)
Verification of Payee (EU Instant Payments Regulation, from 9 October 2025)	Payee name is checked against the account holder's registered name. Keep payee records and the group's own registered names exact; check the bank's terms for bulk files	CONFIRMED (search, Central Bank and BPFI)
Foreign investment screening (Screening of Third Country Transactions Act 2023, in force 6 January 2025)	Notification turns on a third-country investor (outside the EU, EEA and Switzerland, so the UK and Saudi Arabia are included), a holding crossing 25% or 50%, a value of EUR 2m or more, and a sensitive-sector target. On Shane's plan the first round is roughly 15 to 20% and the second gives away about 25%, so the 25% line may be reached on the second round if the same investor holds both. Irish FDI counsel decides whether the deal is notifiable and when	CONFIRMED (search) on the thresholds; sector test and application to Asterial UNVERIFIED
Sanctions screening	The bank and the investor's lawyers screen; the group screens its own counterparties and keeps the record	UNVERIFIED
Data protection	KYC packs carry personal data. Share through a secure folder, to named recipients, with a log	Principle

7.6 Who does what in banking (proposed, for the board to decide)

Person	Proposed role	Note
Shane McCarthy	Authorised signatory. Approves payments to third parties	Payments to Shane or connected parties are approved by a second director or officer, so the process protects him
Pat Carroll	Finance controller. Prepares payments, produces the monthly treasury report	Payments to Pat Carroll's practice are approved by someone else and reviewed independently
Tom Stapleton	Security officer. Token administrator, releases or holds tokens, owns the payment-fraud procedure	Deputy named for cover
John Webb O'Rourke	Chairman and secretary of Noesis. Certifies resolutions and minutes, chairs the board meeting, reviews the monthly report with the independent director	Proposed as reviewer and certifier, not as payment approver. John decides
Diarmuid Hudner	Leads investor relations and the investment for Asterial. Supplies the investor's information	Signatory status for Asterial is a board decision
Independent director and audit and risk committee	Monthly review of balances, exposures and policy compliance	Appoint before funds arrive

7.7 Questions to settle

For the bank: which team owns the relationship; where credit and compliance decisions sit; which documents it requires for each company and in what form; whether it needs a meeting in person and who must attend; the expected time to open accounts; the approach to receiving a large investment through an Irish company owned in part by a UK vehicle.

For the investor's side: the investing entity, ownership chain and manager; whether funds come direct or through a solicitor's client account; currency and tranches; any use-of-proceeds, ring-fence or approved-bank condition; proof of funds and the timetable; who signs for the investor.

For the solicitors: the checks in B10 and B9; the written-resolution and interest rules (ss.161 and 231); the s.69 authority for Asterial; FDI notifiability and timing.

7.8 What is verified and what is not

Verified in search on 12 November 2026 (secondary sources, not statute text): Bank of Ireland's stated company account requirements and RBO expectation; the wording of its mandate and change forms; FXPay application exists; s.166 minutes; ss.40, 41, 238, 239 and 242 existence and purpose; the RBO deadlines; the Criminal Justice Act 2010 sections; Verification of Payee from 9 October 2025; the FDI regime's commencement and thresholds; the EUR 100,000 deposit guarantee.

Not verified: the bank's internal routing and onboarding time; the bank's current application forms (the bank's site could not be opened from this session); written-resolution rule (s.161) and s.231 text; s.238 thresholds; group-company loans; whether FDI notification applies to Asterial; whether any investor country is on a high-risk list; temporary higher deposit cover on investment receipts; Global Markets terms. **These go to the bank, Irish FDI counsel and Asterial's solicitor before reliance.**

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8. Employer mapping (as John stated on 12 November, subject to confirmation) and what is still needed

Person	Employer	Note
Shane McCarthy	Noesis and Asterial	Two employers: fix the split of time, pay and duties, or one primary employer plus a services agreement.
Tom Stapleton	Noesis and Asterial	Same. Dual-role or secondment letter.
Pat Carroll	Noesis only	Asterial's finance work is done under an intragroup services agreement.
John Webb O'Rourke	Noesis only	Record his offices precisely (Chairman, director, secretary). Asterial needs its own secretary.
Diarmuid (Dermot) Hudner	Asterial only	Spelling to confirm.

Still needed: the London firm's name; the investing entity and investment manager when known; William Fry as lead Irish counsel (Dr Barry Scannell, Dublin), with London for English-law and investor-side matters, subject to conflicts clearance; Marsh Dublin as broker (contact Mark Doherty, Corporate Practice, who should introduce the FINPRO and cyber specialists); and a decision on remote staff (see the readiness briefing, section 8: do not add overseas hires before completion unless through an employer of record or a contractor with a signed assignment).

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9. Verification record

Done on 12 November 2026 (banking section): eight further searches on directors' minutes and resolutions, the RBO, foreign investment screening, anti-money-laundering due diligence, Bank of Ireland account requirements and mandate wording, directors' loans and property transactions, Verification of Payee, and authority to bind. Bank of Ireland's forms could not be opened from this session. **Done earlier on 12 November 2026:** about eighteen searches across employment, company, IP, anti-corruption, screening, Saudi enforcement and D&O insurance sources. **No statute text, Revenue, WRC or insurer wording was opened.** Where several professional sources agreed, the point is CONFIRMED (search). Where one source or none supported it, it is UNVERIFIED or UNCONFIRMED. **Not seen by Meridian:** any draft agreement, any policy wording, the investor's name or vehicle, the investment manager, the term sheet, the London firm.

Banking sources used (search results, secondary): Board meetings and minutes, LK Shields; Companies Act 2014 s.199; ODCE on minutes; RBO guidance, LK Shields; FDI screening, McCann FitzGerald; FDI screening, Norton Rose Fulbright; Criminal Justice Act 2010 on the Statute Book; Bank of Ireland business account documentation; BPFI on opening a business account; Bank of Ireland FXPay company application; Bank of Ireland change of authorised individuals form; Arthur Cox on corporate authority; Section 239 on the Statute Book; Central Bank on instant payments; BPFI on Verification of Payee. **Earlier sources used (search results, secondary):** WRC guidance on written terms; A&L Goodbody on auto-enrolment; Lewis Silkin on permits; MHC on protected disclosures; Law Society note on s.238; Grant Thornton on directors' loans; Statute Book s.235 (search result); Marsh on Irish D&O; Woodruff Sawyer private-company D&O guide; Vouch on Sides A, B and C; CRRA 2000 s.23; Maples on restrictive covenants; William Fry on the 2018 Act; William Fry on FDI screening; Pinsent Masons on Saudi enforcement.

Confidence: high on the structure of the schedule, moderate on Irish statutory points marked CONFIRMED (search), low on anything marked UNVERIFIED, not assessed on Saudi or UK law.

Escalation: every legal and insurance point goes to the named professional before it is relied on: employment solicitor, corporate solicitor for Asterial, IP solicitor, tax adviser, Irish FDI counsel, Saudi counsel and a specialist insurance broker.

Meridian Intelligence schedule, revised in Cuan, 12 November 2026. Private and confidential. Status IN REVIEW, human gate engaged. Meridian informs. It never represents.